

MASTER SERVICES AGREEMENT



This Master Services Agreement (“Agreement”) is entered into as of July __, 2026 (the “Effective Date”), by and between:

Russell Nomer Consulting (“Consultant”), with its principal place of business at [Your Full Address], and

David Chametzky (“Client”), with its principal place of business at [Client’s Address].

1. Definitions

- “Services” means the consulting, development, and related services described in one or more Statements of Work.
- “Statement of Work” or “SOW” means a written document describing specific Services, deliverables, timelines, and fees.
- “Deliverables” means all work product, software, documentation, and materials developed or provided by Consultant under any SOW.

2. Scope of Services

Consultant agrees to provide the Services described in each Statement of Work executed under this Agreement. Each SOW shall reference this Agreement and form an integral part of it.

3. Statements of Work

The specific Services, deliverables, timelines, fees, and other terms for each engagement shall be set forth in one or more Statements of Work. The initial SOW for the AllThePower project is attached as Exhibit A.

4. Fees and Payment

4.1 Fees. Client agrees to pay Consultant the fees set forth in each SOW.

4.2 Payment Terms. Invoices are due within fifteen (15) days of receipt unless otherwise specified in the applicable SOW.

4.3 Late Payments. Any amounts not paid when due shall accrue interest at the rate of 1.5% per month (or the maximum rate permitted by law, whichever is lower).

4.4 Expenses. Reasonable pre-approved out-of-pocket expenses shall be reimbursed by Client.

4.5 Revenue Share. If any SOW includes a revenue share arrangement, such payments shall continue for the commercial life of the applicable product or service, including in the event of any sale, transfer, or assignment of the product or its underlying intellectual property to a third party.

4.6 Audit Rights. If any SOW includes a revenue share arrangement, Client agrees to provide Consultant with read-only access to the primary payment processor or quarterly financial statements upon request. Consultant reserves the right to audit Client's revenue records once per calendar year.

5. Intellectual Property

5.1 Work Product. Subject to full payment of all upfront fees and ongoing compliance with any applicable revenue share obligations, Client shall own all right, title, and interest in the Deliverables created specifically for Client under a SOW.

5.2 Pre-Existing Materials. Consultant retains all right, title, and interest in any pre-existing materials, methodologies, tools, frameworks, and generalized architectural patterns developed by Consultant prior to or outside of this engagement. Client receives a perpetual, royalty-free, non-exclusive license to use such materials as incorporated into the Deliverables.

5.3 Open Source. Any open-source software incorporated into the Deliverables remains subject to its applicable open-source license.

6. Confidentiality

Each Party agrees to maintain the confidentiality of the other Party's confidential information and not to disclose it to third parties without prior written consent, except as required by law. This obligation shall survive termination for three (3) years.

7. Representations and Warranties

Consultant represents and warrants that the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards.

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, CONSULTANT MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED.

8. Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS. CONSULTANT'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL CONSULTING AND DEVELOPMENT FEES PAID BY CLIENT TO CONSULTANT (EXCLUDING ANY REVENUE SHARE PAYMENTS) DURING THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

9. Indemnification

Consultant shall indemnify Client against claims arising from Consultant's gross negligence or willful misconduct. Client shall indemnify Consultant against claims arising from Client's use of the Deliverables or Client's breach of this Agreement.

10. Term and Termination

10.1 Term. This Agreement begins on the Effective Date and continues until terminated by either Party.

10.2 Termination. Either Party may terminate this Agreement or any SOW for convenience upon thirty (30) days' written notice. Either Party may terminate immediately for material breach that remains uncured for fifteen (15) days after written notice.

10.3 Effect of Termination. Upon termination, Client shall pay for all Services performed and Deliverables delivered through the effective date of termination. Sections 4, 5, 6, 8, 9, and 11 shall survive termination.

11. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of the State of New York. Disputes shall first be attempted to be resolved through good-faith negotiation. If negotiation fails, disputes shall be resolved through binding arbitration in Nassau County, New York.

12. Miscellaneous

12.1 Entire Agreement. This Agreement, together with all Statements of Work and exhibits, constitutes the entire agreement between the Parties.

12.2 Amendments. This Agreement may only be amended by a written instrument signed by both Parties.

12.3 Assignment. Neither Party may assign this Agreement without prior written consent, except that Consultant may assign this Agreement to an affiliate or successor.

12.4 Severability. If any provision is found unenforceable, the remaining provisions shall continue in full force.

12.5 Relationship of Parties. Consultant is an independent contractor.

12.6 Publicity. Consultant may use Client's name and a general description of the Services in Consultant's portfolio, website, and marketing materials, provided no confidential information is disclosed.

12.7 Notices. All notices, requests, and other communications under this Agreement must be in writing and sent to the email addresses provided by the Parties. Notices shall be deemed delivered upon transmission (or, if sent by certified mail, upon receipt).**

IN WITNESS WHEREOF, the Parties have executed this Master Services Agreement as of the date first written above.

Russell Nomer Consulting

Signature: _____ **Date:** _____

Name: Russell Nomer, CISSP, ITIL

Client

Signature: _____ **Date:** _____

Name: David Chametzky

Exhibit A – Statement of Work for AllThePower (attached separately)